

STATE OF NEW YORK

9038--A

IN SENATE

January 27, 2026

Introduced by Sens. SEPULVEDA, SALAZAR -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to enacting the "take the wheel act" requiring a driver be present in all motor vehicles operated for hire

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "take the wheel act".

3 § 2. Subdivision 23 of section 375 of the vehicle and traffic law is
4 amended to read as follows:

5 23. Every motor vehicle operated for hire upon the public highways of
6 this state: (a) shall be equipped with handles or other devices which
7 shall permit the door or doors to the passenger compartment to be readily
8 opened from the interior of the vehicle; and (b) shall not be a vehicle
9 operated by an automated driving system without a human driver physically
10 present in such vehicle, seated behind the steering wheel and
11 engaged in the task of driving.

12 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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